CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
September 22, 2010
7:00 p.m.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:04 p.m. on Wednesday, September 22, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph S. Geller, and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not in attendance because she was ill.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Request to amend the agenda to include the following resolutions under agenda item 13 (New Items):

13-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, IN RECOGNITION OF HISPANIC HERITAGE MONTH, BEGINNING SEPTEMBER 15, 2010 THROUGH OCTOBER 15, 2010; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend that agenda to include the above resolution as item 13-1.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

13-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SELECT _____ AS THE CITY'S OFFICIAL AUDITING FIRM FOR THE UPCOMING FISCAL YEAR 2010-2011; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the agenda to include the above resolution as item 13-2.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Patterson deferred agenda item 16-2 from the Consent Agenda.

Commissioner Johnson pulled 16-7, 16-8; Vice Mayor Taylor pulled 16-3, 16-6, 16-11, 16-12; and Commissioner Holmes pulled 16-4. These items would be pulled off of the Consent Agenda and discussed separately under Action Items (agenda item 12).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

First Budget Hearing – 09/08/2010
Regular Commission Meeting – 09/08/2010

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the First Budget Hearing of September 8, 2010 and Regular Commission Meeting of September 8, 2010.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for the Office of County Commissioner Barbara Jordan (District 1) came forward and stated that he would keep the Commission informed of the decision made by the county relating to CAA Headstart which had not taken place as of yet. In addition to that, he stated that he forwarded information via email to the Deputy Clerk in regards to the different services provided by the county which is handled through the Community Action Agency (CAA).

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

Battalion Chief Todd Grafloy of Miami-Dade County Fire Rescue came forward and reported that based on statistical review of response times, etc. the units servicing Opa-locka are doing a great job with zero complaints.

Commissioner Johnson asked that the Commission be informed should any of the units servicing Opa-locka be closed down due to the county's budget process and cuts.

11. PUBLIC PRESENTATION:

William Susman, volunteer with the Alzheimer's Association came forward for a brief presentation on the upcoming Alzheimer Memory Walk. In addition to the walk, the University of Miami School of Medicine will sponsor an Alzheimer's City Challenge in which a trophy is awarded to the city with the highest percentage of its population participating in the walk. He encouraged the city to participate in this event.

Monte Gibbs of 1311 Peri Street, Opa-locka, Florida, came forward to express his concerns relating to an unresolved code violation since June 2009 in which he had difficulties getting closure. This matter involved a grievance he filed against his neighbor.

Mayor Kelley directed the City Manager to have staff address this matter.

Mr. Gibbs offered to provide the Commission with the documentation relating to this matter.

Mayor Kelley directed the City Manager to have the appropriate staff speak with Mr. Gibbs and make copies of the documentation for the Commission.

John Riley of 2963 NW 135th Street, Opa-locka, Florida, appeared before the City Commission and said that through the budget process, he didn't hear any plans for City Hall or the city administration. Town Center One, the present building that the city occupies, is scheduled to be sold on the courthouse steps at a public sale on October 5, 2010 and it has been reassigned to another person (he provided the Commission with a copy of the court order / amended final judgment of foreclosure). The city has put a substantial amount of public money into that building and is continuing to do so as the remodeling is currently taking place on the 1st floor, but yet the public doesn't know the status of the city's facility as of this date. He encouraged the city to put in a bid for the property at the sale and if not, then they should try to negotiate in order to retrieve dollars invested in the property over the years.

Mayor Kelley stated that over a month ago the Commission adopted a resolution directing the City Manager to look into either purchasing the building or an alternative to get out of the building because it was clear to him after hearing through the rumor mill that the building would be sold due to some issues.

Commissioner Holmes asked for an explanation as to why the Commission hasn't received any information relating to this matter since this building is getting ready to be auctioned off on October 5, 2010 and has been in foreclosure since January 2010.

Mr. Riley was of the opinion that negotiating with the current owner would be fruitless because they really have no say and they would try to get out of it whatever they can knowing it's a lost. He further provided the Commission with a copy of the Assignment of Judgment. As of April 1, 2010, the judgment was assigned to another company.

Mayor Kelley said he would allow the City Manager to address this issue following public presentation.

Mr. Riley stated that no one in the city has contacted the company in Massachusetts.

Terence Pinder of 250 Sabur Lane, Apt. # 130, Opa-locka, Florida came forward and thanked Commissioner Johnson for voting "no" on the insurance that is being forced on the employees. He elaborated on the high deductibles and co-payments associated with

the new health insurance for city employees. He spoke about the ordinance on the agenda for the Agent of Record which he doesn't know if that had gone out for bid.

He continued by thanking the Commission for the legislation on the agenda so that the employees wouldn't lose their compensatory time. Of concern to Mr. Pinder were the Human Resources and Finance Departments.

He further thanked the Chief of Police for doing such a great job with the resources available. He went on to inquire about the Obama money; the five police officers that were supposed to be hired; the Finance and Human Resources Departments; the formula for each employee getting paid out of the Enterprise Prize Fund.

Commissioner Johnson asked, what is the status of the police officers to be hired during the current budget?

Manager Patterson stated that it was his understanding the city is currently going through that process of hiring new officers.

Chief Cheryl Cason of the Opa-locka Police Department came forward and stated that they are in the process of hiring three (3) officers to fill the budgeted positions.

In reading the Weed & Seed, Commissioner Johnson stated that the budgeted positions were for five police officers.

Chief Cason explained that they were having problems coming to capacity to fill the grant positions and what previous management did was lower the table of organization from 52 to about 43 which allowed leverage to bring on those officers. However, there were still problems filling those positions during that time. The capacity for this current year is 50 and they are at 47 and actively in the process of hiring three police officers.

Commissioner Johnson suggested that the City Manager provide a more affinitive detailed answer because in working with grants if it's budgeted for five she is not sure if the city has the leverage to hire less. She said she would have hoped that Mr. Paul Sweeny would be present since it has been alleged that he is the one that looks at the scope of services and she is concerned as to how that can happen and not be brought to the Commission's attention. That is not for finance to make a decision on but for the Commission to make that decision.

Mayor Kelley said he wanted to be clear that the city is currently at 47 and the three officers to be hired would bring the Opa-locka Police Department to its capacity of 50. He said he didn't want the rumor mill suggesting the city doesn't have police officers when in fact they have more police officers now then they've had previously and the city is always actively pursuing more.

Alvin Burke of 550 Sharar Avenue, Opa-locka, Florida, appeared before the City Commissioner and voiced his concerns relating to the foreclosure of Town Center One and the city continuing to spend money on the building.

He further spoke in favor of the resolution on the agenda to increase the police officers salary.

11a. CITIZENS' FORUM:

Sandra Bolden of 1945 NW 185th Street, Miami Gardens, Florida appeared before the City Commission on behalf of Pastor Dr. Gilbert S. Smith to request permission to utilize the vacant lot at NW 22nd Avenue and NW 143rd Street for their street ministry on Saturdays for the next two months.

Of concern to Mayor Kelley was the potential for conflict with individuals renting the facilities at Segal Park because of the noise and there must be a balance. He directed the City Manager to work through the issues as it relates to the conflict and bring it back to the Commission for a directive, if necessary.

Commissioner Johnson suggested that Mrs. Bolden consider partnering with some of the local churches.

Mayor Kelley said he would rather see the ministry at one of those sites as oppose to being in the open for a long period of time. The Commission would wait on the City Manager to provide a recommendation.

Terence Pinder of 250 Sabur Lane, Opa-locka, Florida, came forward and expressed his concerns relating to the hiring of three police officers instead of five with the Obama money and his concerns not being answered.

Mayor Kelley directed the City Manager to address the concerns under the City Manager's Report.

Celia Pruitt of 2350 NW 141st Street, Opa-locka, Florida appeared before the City Commission to voice her concerns regarding a vacant home at 2310 NW 141st Street; the condition of the road at NW 26th Avenue and NW 141st Street; the quality of work done when placing the speed bumps on NW 141st Street; and the need for speed bumps near Nathan B. Young Elementary School.

Commissioner Johnson stated to the City Manager that two of the concerns just mentioned came up during the tour and those items should be addressed by now.

Johnnie Mae Greene of 2091 Wilmington Street, Opa-locka, Florida, appeared before the City Commission and asked for specific dates in which the terrible housing conditions would be solved. With regards to her previous concern about the shortage of police officers, she said there was an incident occurred over the weekend and the police were

there immediately but then they had to leave because of a shooting. The city does have a shortage of police officers and something must take place to get the police officers here.

She said she received several telephone calls prior to her arrival at the meeting regarding the overgrown grass at the house next to 14255 NW 22nd Court and the overflowing of sewage on NW 143rd and NW 22nd Place.

With regards to her previous concern about the quality of life for those residents on the east side of NW 27th Avenue, she said she had not seen drastic changes although the police officers are present doing their jobs. Her concern is with the housing and nothing has been done; therefore, she would like to get a timeline with specifics dates when she would see a change.

She further stated that the city is in need of additional certified code enforcement officers which would help solve some of the existing problems. Because she was present at the last meeting with the same concerns and nothing was done, she said her next step would be to take to the streets to Channel 7.

Vice Mayor Taylor informed Mrs. Greene that she had reported the property with the overgrown grass to the police department because it appeared as if someone was living in the house and she also reported the sewage problem.

She continued by saying that the police department has a presence on NW 22nd Avenue that wasn't there before.

Commissioner Johnson asked, what is the Opa-locka Police Department's plan in terms of community policing?

Chief Cheryl Cason of the Opa-locka Police Department came forward and stated that she along with the Deputy Chief and several police officers walked the streets of Opa-locka knocking on doors and taking concerns.

Deputy Chief Adam Burden came forward and explained that in addition to what the CET is already doing, the Opa-locka Police Department is in the process of purchasing ten bicycles and training officers to tour the streets on bicycles interacting with the community. Additionally, there is discussion about an Officer Athletic League and bringing back the police explorers.

John Riley of 2963 NW 135th Street, Opa-locka, Florida, came forward and informed the Commission that the Housing Authority has subpoenaed the owners of the property on NW 22nd Avenue to appear on September 23, 2010 @ 7:00 p.m. to address the issues of those properties. The residents have been invited as well to start a process of addressing the living conditions for those buildings.

During the budget process there was discussion relating to the Water & Sewer Enterprise Fund but the garbage and trash is a part of the Enterprise Fund ant there's dollars paid

into the stormwater drainage. Of concern to Mr. Riley was the condition of the pump stations because the city had done work on the smaller lift stations but failed to address the main stations such as 11A and 11C.

He further stated that everybody in this city gets paid from the Enterprise Fund; however, the employees who do the work can't get overtime when the sewers break down. The city must focus on getting the main stations repaired and on those employees that are out doing the actual work.

Forest L. Ivy, manager of Family Dollar in Opa-locka came forward and spoke in favor of resolution #7 increasing the salary for police officers.

Commissioner Johnson suggested that Mr. Ivy address the loitering and selling of items on the outside of Family Dollar and that he revisit the covenant agreement.

Mr. Ivy advised that he has banned individuals from standing outside of Family Dollar.

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, came forward and requested with regards to the foreclosure that the Commission come back with a plan for the city should that building close. The taxpayers deserve to know the plan of this Commission.

He spoke about a company from Homestead that is dividing this Commission using four commissioners like they don't represent the whole community. This company lost their $300,000.00 lawn service contract and the major goal is to campaign to try to get someone else in that thinks they can get the contract back. It is not right to use the community to say that a specific commissioner doesn't represent the entire community.

He further thanked the Commission for approving a landscaping contract where they pay $240,000.00 instead of over $300,000.00. He asked, is the company in question still doing business in this city? If so, he further asked to be provided with the total dollar amount paid to this company and if that amount is more than $5,000.00 then why hasn't it come before this Commission for approval.

After hearing the comments from Mr. Barrett, Commissioner Johnson suggested that he report his concerns to the Ethics Commission. Secondly, she said it was wrong how someone said she was the one who brought a firm to the city but she didn't even know the individual. However, as the city selects individuals they must hold everyone accountable and she is not for the garbage she is hearing although this is the season for it.

Pastor Jimmye Larkin of 2011 NW 153rd Street, Miami Gardens, Florida, appeared before the City Commission and encouraged the city to keep the policemen that they have because they are doing a great job. She went on to say that if it takes more money than the city should pay the officers because they are putting their lives on the line.

Celia Pruitt of 2350 NW 141st Street, Opa-locka, Florida, came forward and requested that the trees erected earlier in the year be maintained because they are leaning almost to

the ground. In addition, she requested more trees along the canal on NW 141st Street and near Nathan B. Young Elementary School.

She continued by saying that there had been some back and forth shooting near the canal and it seems there's some type of dispute making the residents in that area afraid to walk outside. She requested additional police presence and suggested that the Commission do whatever they could to support the police department.

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that the majority of the conversation has been about the police department and police officers. The citizens of Opa-locka can't say enough of the job that they do in keeping their families safe in the city, but yet still the concern is more police presence. He encouraged the city to hire those additional officers and keep the current officers by increasing their salary because they are the lowest paid in Miami-Dade County.

Mohammad Abad, owner of a thrift store in Opa-locka, came forward and spoke on behalf of the Opa-locka Police Department who is doing an excellent job and deserves an increase. He encouraged the Commission to make an effort in keeping the officers.

Tyrell Leggett of 340 Dunad Avenue, Opa-locka, Florida, appeared before the City Commission and thanked the Opa-locka Police Department for their police presence during the early morning hours when the youth are going to school. In addition, he thanked the Community Development, Code Enforcement and IT/Media departments for the support and guidance provided which has made a positive impact and allowed him to better his grades in High School.

In addition to that, he thanked the city for allowing him to work for the summer and volunteering after school for the past 1 ½ years.

Commissioner Holmes thanked Mayor Kelley and the Commission for their support during his time of illness. Although he had surgery, he was present at the meeting because of those items he sponsored on the agenda. He pointed out that as a commissioner for many years he has and continues to have an open door policy. Also he has continuously sponsored legislation for raising the salary of police officers and city employees.

12. ACTION ITEMS (items from consent agenda pull list):

16-3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO LOOK INTO THE ISSUE OF THE CITY EMPLOYEES' WHO WILL BE LOSING THEIR COMPENSATORY TIME; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Although Vice Mayor Taylor didn't have a problem with the resolution because the compensatory time was an issue, she suggested that the Personnel Board look into this issue.

Commissioner Johnson agreed with Vice Mayor Taylor.

Commissioner Holmes said that he was okay with the Personnel Board looking into the compensatory time as long as something gets done about the issue because the employees are complaining about losing their time.

Vice Mayor Taylor said she too received complaints about the employees losing their compensatory time but the employees have worked those hours and need their money. She suggested that the City Manager move it to the Personnel Board.

Commissioner Johnson proposed an amendment to the resolution authorizing the City Manager through the Personnel Board to look into the issue of compensatory time.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the above resolution.

Mayor Kelley directed the City Manager to provide the Commission with the minutes of the Personnel Board meetings relating to this matter immediately following the meetings as oppose to waiting.

Attorney Geller stated that the proposed amendment to the resolution title and Section 2 is as follows:

Resolution Title:	AUTHORIZING THE CITY MANAGER THROUGH THE CIVIL SERVICE BOARD…
Section 2:	The City Manager through the Civil Service Board…

There being no discussion on the amendment, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

16-4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SUBMIT AN APPLICATION TO LOWE'S CHARITABLE AND EDUCATION FOUNDATION REQUESTING FUNDS AND DONATIONS UP TO FIFTY THOUSAND DOLLARS ($50,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes asked for clarification on the resolution.

Attorney Geller explained that the resolution is a request to submit an application to Lowe's who has a charitable and education foundation. The city is asking for $50,000.00 for funds and donations to be used for certain purposes that the administration has recommended.

Commissioner Holmes asked, is the city requesting to receive up to $50,000.00 from Lowe's?

Manager Patterson stated that this is for monies to augment the roofing program of which the Commission had set aside $50,000.00 from the general fund.

Attorney Geller added that Lowe's sometimes gives materials instead of money.

Commissioner Johnson asked the sponsor how this particular resolution would fit into the city's educational compact. Although she understood charitable and educational, she doesn't know how this resolution bypassed her. In her opinion, this resolution was misleading.

Manager Patterson reiterated that the resolution is to augment the $50,000.00 this Commission set aside for the roofing program for senior citizens.

Of concern to Commissioner Johnson was that she'd asked staff to look for $25,000.00 for the educational compact and although she understood the need for roofing, she will not support this when there are kids who will never go to collage that need to be educated. She suggested that the city go out and find monies through other sources

available. She said she would not be supporting the resolution because Lowe's charitable & education foundation is to enhance education.

Vice Mayor Taylor explained that Lowe's has a charitable and education foundation and a number of things can come from that foundation. Although she didn't write this and she is not the sponsor, if it is going to the roofing program then she certainly appreciates it. Not only can this go for roofing repairs for the seniors but it can also go for the educational packet Commissioner Johnson is talking about. The $50,000.00 can be split between the roofing program and the educational packet. The city is asking for $50,000.00 but it doesn't mean they will receive that amount.

Commissioner Johnson stated that she is of the professional opinion if this grant came before the Commission and it indicated roof repairs then she would not want staff to offset it to education. When she previously asked for monies for the educational compact it was an oversight on the City Manager's behalf and since the city didn't have any money, she said the urgency of both schools in Opa-locka is too critical to not have money set aside. Understanding the different categories in the foundation, she said it is misleading. Based on the comments from the City Manager, it seems as though he doesn't know too much about this item.

Manager Patterson stated that this item originated from the building department and it was explained to him that this would be money to help offset the monies the city was looking for to spend on the roofing program for seniors.

Commissioner Johnson said she was very much in support of the seniors but she doesn't think there would be an opportunity to split the money and if it was, then it should be noted in the legislation. Because she had concerns, she said she would not be supporting the legislation.

Mayor Kelley stated that the analysis in the supporting documentation reads "provide materials and other funds necessary to repair the roofs of selected applicants to the roof replacement program". He was of the opinion that the city should've already spent $50,000.00 it's almost the end of hurricane season and a roof has yet to be repaired.

After hearing the City Manager state that the building official completed this grant, he asked, why is the building official researching grant foundation funding? He directed the City Manager to provide a response to his question via memorandum format.

He further stated that the money this Commission set aside for roofing repairs needs to be utilized on as many properties as possible. When those funds are exhausted then the city could apply for funds to assist other applicants; but they must utilize the money already set aside. In reading the legislation he said it was kind of strange to read the word "education" with "roofs".

Of concern to Mayor Kelley was looking for educational dollars to repair roofs. Because the building official was not present, he said he would have liked to get more clarification as to how the components fit together. He said he would not support this item as is but he does want the city to spend the $50,000.00 already authorized by the Commission for senior roof repairs.

Vice Mayor Taylor stated that she didn't want this issue to go in a way that appears as if the city is just sitting on the $50,000.00 and not doing the roof repairs; however, due to the rain, the workers could not start the roof repairs. Now they have started the roof repairs and the city has solicited material so that it would not place such a strain on the city's budget. Also, they are in need of an additional $50,000.00 but that's not the time. She recalled that when the city went to Lowe's for supplies Lowe's asked the city to write their charitable foundation for supplies. This has nothing to do with education, it's just the name of the foundation and in that comes out material that they can donate to the city for roof repairs. She requested that the City Manager defer the resolution because she didn't want anyone to think that the Commission was taking anything away from education.

Due to the misunderstanding and the lack of support from Commissioner Johnson and Mayor Kelley, she again requested that the City Manager defer the item.

Commissioner Johnson referred to information which reads under reason of project: "community improvement initiative – playground or park, landscaping, neighborhood beautification, community garden, building repairs or renovations, community clean up, outdoor classrooms. They would support K-12 public school initiative under the grounds of – playground, landscape and school beautification. Minor repairs are construction for trade education".

Commissioner Holmes removed his seconded; the motion died for lack of a seconded.

Commissioner Johnson assumed that because the motion died for lack of a seconded that it cannot come back for six months.

Attorney Geller informed the Commission that he never did find the six month rule. He advised that the resolution would have had to be voted on and voted down for it to have died.

Mayor Kelley asked, can this resolution come back before the Commission?

Attorney Geller replied, yes.

16-6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO LOOK INTO THE APPROPRIATION OF FIVE THOUSAND DOLLARS ($5,000.00) HIRING BONUS TO POLICE OFFICER KELLY; PROVIDNG FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor asked, is the $5,000.00 bonus still in effect or does it have a sunset since this is from 2008?

Chief Cheryl Cason of the Opa-locka Police Department came forward and stated that she had just learned of the resolution and there are some others who have not received their $5,000.00 bonus. After conducting some research, the city sent approximately 9 police officers to the academy in 2007 / 2008 and that was during the time they were providing a $5,000.00 hiring bonus. Provided to the Commission was a copy of a resolution of one of the officers who went through the academy and was given a $5,000.00 bonus during that time and the other eight resolutions say the exact same thing. Upon speaking to Dr. Orji and Mrs. Ruiz-Nicholas, Dr. Orji indicated that the $5,000.00 bonus only applied to the officers the city had put through the academy.

Vice Mayor Taylor asked, does that invalidate Officer Kelly?

Chief Cason stated that the city didn't put Officer Kelly through the academy.

Vice Mayor Taylor asked, so this resolution was for officers who the city put through the academy as an incentive to stay?

Chief Cason replied, according to Dr. Orji.

Commissioner Holmes advised that the resolution doesn't address what is being stated.

Being in receipt of a resolution for a $5,000.00 bonus dating back to 2008, Mayor Kelley asked, does that resolution apply to the resolution Commissioner Holmes has brought forth?

Chief Cason replied, I would think so.

Vice Mayor Taylor then asked, does it apply to officers that the city sponsors through the academy?

Chief Cason replied, I think it applies to both. However, the city is in the process of investigating this matter further.

Mayor Kelley said he wants to vote on the resolution and doesn't want to get into what staff is going to investigate.

Commissioner Holmes recalled the discussion from several years back when the city was giving the $5,000.00 hiring bonus to officers who were hired during that time and continued employment for at least two years; however, Officer Kelly is entitled to his $5,000.00 whether the city sponsored him through the academy or not.

Vice Mayor Taylor asked, was this particular resolution for those officers that the city put through the academy? She further asked, what is the intent of the resolution Chief Cason distributed to the Commission?

Upon having discussions with Dr. Orji because the hiring bonus was under a previous administration, Chief Cason stated that she was told by Dr. Orji that the bonus only applied to those individuals the city put through the academy. However, that's not what the resolution reads.

Vice Mayor Taylor attempted to get further clarification as to whether it applied to every officer that came in brand new and as of what date?

Chief Cason stated that the resolution is from 2008 and there were others that were paid the bonus. Those officers that received the bonus were officers the city sent to the academy. She informed the Commission that she was just made aware of this issue and is doing some research.

Of concern to Mayor Kelley was the fact that Chief Cason is just receiving her agenda packet when the packets are prepared on the Friday prior to the meeting. The City Manager needs to make sure staff is getting their packets on that day so that they can be prepared when it comes to issues pertaining to their departments. The Chief is saying she just received her packet that same day so she can't even respond to how many more officers; therefore, the Commission can only deal with the resolution as printed and as the commissioner said if there's more than he'll bring them back.

He directed the City Manager to make sure all department heads review their agendas and are prepared to answer questions from the Commission relating to items that impact their department.

Commissioner Johnson recalled when the hiring bonus was being given to the police officers, several officers left and didn't live up to the agreement; however, when the legislation came up in front of them there wasn't an open or end to it. Although she was going to support the resolution, she asked whether the money was budgeted for.

Manager Patterson stated that the $5,000.00 is not budgeted for.

Commissioner Johnson made reference to account no. 36-521110 and stated that someone had to come up with that number.

Manager Patterson informed the Commission that the $5,000.00 would be paid out of that account number but the question was did he put this money into the budget and the

answer is "no". That account number is where the $5,000.00 would be paid out of from this current budget.

Commissioner Johnson said there is money in that line item to cover for this $5,000.00; however, the Commission would have to schedule a special meeting should there be others because the bonus is not budgeted for FY 2010/2011.

Vice Mayor Taylor asked for clarification relating to the monies in the budget.

Manager Patterson explained that he would be able to pay the $5,000.00 from the current operating budget; however, as of October 1, 2010 there is no money for any additional bonuses.

In an effort to avoid opening up Pandora's Box, Vice Mayor Taylor directed the City Attorney to come up with wording to include a sunset in the resolution until this matter could be researched because the City Manager just admitted that he didn't budget for any bonuses.

Attorney Geller stated that the resolution Commissioner Holmes introduced is specific only to Officer Kelly so they can't attach something to a resolution that's only about Officer Kelly that says they will not consider anybody else. That would be a decision the Commission can make in two ways: (1) they can simply not vote in favor of any further resolutions that may come in front of them until they are satisfied with the results of it or (2) they could sponsor legislation that sets a policy for the next meeting indicating that they will not award any further bonuses until whatever condition they want to set.

Commissioner Holmes directed the City Manager to provide him with the names of all police officers who were entitled but did not receive the $5,000.00 hiring bonus so that he can sponsor legislation so that they are paid.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

16-7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO INCREASE POLICE OFFICERS' ANNUAL SALARY TO FORTY THOUSAND DOLLARS ($40,000.00), INCLUSIVE OF OFFICERS MAKING LESS THAN $40,000.00; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson inquired about the line item the monies associated with this resolution would come out of.

Manager Patterson explained that the city is still in negotiations with the PBA and he has no problems living up to whatever they negotiate. He reminded the Commission that this resolution may be setting the city up for a lawsuit because this is money they would be giving to the officers arbitrarily and not according to what the contract calls for.

Knowing that information, Commissioner Johnson asked the City Manager why he didn't consult with the sponsor to make him aware. Over the years she asked that an account number be included in all legislation dealing with monies.

Manager Patterson advised that he is unaware of any legislation the commissioner requests the City Attorney to prepare until he receives his agenda packet. When he did receive this resolution Commissioner Holmes was in the hospital.

Commissioner Johnson expressed the importance of the City Manager, City Attorney and City Clerk having dialogue. She was of the opinion that something should have occurred since this item was placed on the agenda either discussion or the item should have been pulled.

Manager Patterson said he would not pull an item that any elected official asked the City Attorney to place on the agenda.

Commissioner Johnson agreed with Manager Patterson with regards to agenda items sponsored by elected officials but she said that if he would have had dialogue with the sponsor then they would not be in this discussion.

After hearing positive comments on behalf of the city's police officers from citizens, Commissioner Holmes stated that the police officers are leaving the city because the pay is less than any other municipality. The PBA or police officers are not going to sue the city because of something positive by increasing the starting salary to $40,000.00 and those not making $40,000.00 will be increased as well. It doesn't make sense to hold on to $500,000.00 in the reserve account when there are existing problems in the community. He suggested that the Commission give the police officers the salary they deserve to keep them working for the city.

Commissioner Johnson requested to be provided with an account number where the money would come out of.

Manager Patterson was unable to provide an account number at that time but said he would provide the account number to the Commission. He provided the Commission

with the total amount associated with this resolution given everybody that's under $40,000.00 and those that are $41,000.00 - $42,000.00 in order to keep from getting compression so they too would get proportionately increased. This would impact 37 police officers, including benefits, for a total of $291,916.00.

Commissioner Johnson stated that this resolution doesn't address what the City Manager just stated; it only provides for an increase for those officers making less than $40,000.00.

Guithele Ruiz-Nicholas, HR Director for the City of Opa-locka came forward and explained that of the 37 officers in the categories of police officers, corporals and sergeants they all would be affected by this increase. The city currently has sergeants who have been with the city for a number of years making about $41,000.00 and to minimize compression, they don't want the supervisor making close to the same amount as their subordinates, therefore, the salaries would have to be moved proportionately to minimize that type of proportion.

Commissioner Johnson assumed there would be a different resolution because this resolution is not addressing what was stated by the City Manager and HR Director. She agreed with Commissioner Holmes with regards to the PBA suing the city because they are slightly increasing the salary of the police officers. However, she is voting on what's in front of the Commission now understanding that it would cost the city approximately $300,000.00 more and she would like to know where that money is coming from. Should the Commission pass this resolution then the city must have the $300,000.00.

Attorney Geller stated that Commissioner Johnson was correct because this particular resolution would not require the Commission to raise anybody else's salary other than the aforementioned. Now whether that's the advisable thing to do is something they would then have to consider. He added that the city has been in negotiations with PBA and currently have a tentative agreement which he just received in writing, completed a review and it would be in front of them at the next meeting. The PBA contract calls for raises targeting the lowest level but doesn't call for going to the level that Commissioner Holmes has proposed. However, it does call for immediate raises for the entire range instead of just the minimum salary. It calls for moving up the minimum and it's a proposal for a three year contract that has the minimum rising each year. He spent a lot of time with Finance to make sure it is affordable.

Vice Mayor Taylor stated that she had no problem with the police department getting a raise however it comes but her concern is that the officers just coming in would be making about the same as the officers who's been there for a while which creates an unfair system.

Attorney Geller stated that the city has dealt with the increases in the proposed contract and most of the dollars in the proposed contract are targeted to lowered paid employees both those that are below $40's and those that are in the $40's to keep that progression of salaries.

Although she didn't mind the police department getting a raise, Vice Mayor Taylor said she didn't want the city to proportion itself clean out of an unbalanced budget.

Being in agreement with paying the police officers more money, Mayor Kelley said that the City Manager and City Attorney have spent a lot of time in the PBA negotiations and the city is not prepared for a $300,000.00 increase out of the budget. He suggested that the resolution is deferred until the Commission can review the numbers negotiated and if they don't like those numbers then they can direct the City Manager to find the additional dollars to make it proportionately work.

He further recommended that the sponsor defer the resolution to allow the Commission to review the numbers negotiated by staff and PBA for the police officers. In the meantime, the City Manager can look at the impact and finding those additional dollars in the upcoming budget just in case the Commission is not happy with the agreement as laid out in the proportioned ratio of raises.

Commissioner Holmes agreed to defer the above resolution to the next regular commission meeting.

The motion and seconded on the above resolution were withdrawn. The resolution was deferred by the sponsor to the Regular Commission Meeting of October 13, 2010.

16-8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AWARDING THE CONTRACT FOR BOND COUNSEL SERVICES TO SQUIRE SANDERS AS THE MOST RESPONSIVE BIDDER, FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH SQUIRE SANDERS FOR THE PROVISION OF BOND COUNSEL SERVICES IN AN AMOUNT BASED ON THE VALUE OF THE BONDS ISSUED, PAYABLE FROM ACCOUNT NO. 17-513312; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Of concern to Commissioner Johnson was the $800,000.00 figure in the correspondence provided which has a financial budget line item to be paid out of. She recalled only receiving one response for this particular service and she would like to know why this didn't go out for bid again.

Manager Patterson explained that there were two companies who submitted proposals and this is his recommendation from the two.

Commissioner Johnson asked, how much would this cost the city?

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the amount to be paid for the bond counsel would be determined at the time the bond is issued based on the value.

Commissioner Johnson referred to the supporting documentation which indicates that the cost of this service would be approximately $800,000.00 of the bond process which has been projected for 2010. And now she is hearing staff saying it may be higher or lower and if it is higher then somewhere in this particular line item there's money.

Manager Patterson stated that the city doesn't know what the yield is going to be on the bonds until they actually put them out. It seems like things are slightly moving up right now but they will not know what the bonds will be until they are put out.

Commissioner Johnson asked, what would be the overall impact because there are some items in the upcoming budget pertaining to providing services?

Manager Patterson replied, little of none. As far as the impact on the current budget, the Commission may have to go back if the bonds come in at a higher amount which would mean additional revenue at which time they would have to amend the budget for infrastructure.

Commissioner Johnson asked, so this would allow for the possibility of receiving more money on the bonds?

Manager Patterson replied, that is correct.

Commissioner Johnson asked, who would the bond counsel work with and report to?

Relating to the bonds, Manager Patterson said it would be reported back to the Commission for them to make a decision. The bond counsel would work with him and the Finance Department.

Vice Mayor Taylor asked, is there a percentage paid to the bond counsel based on the amount of the refinance?

Manager Patterson replied, yes, that is the normal practice.

Dr. Orji stated that he would hope the total cost of issuance for this bond should be within 4% which would be all inclusive of cost to the financial advisor, the bond counsel and other issuance costs associated with the transaction. The norm is between 4.5 – 5% all inclusive.

Vice Mayor Taylor assumed that the refinancing is worth at least $800,000.00 hoping it would build up with the market.

Mayor Kelley added that between the 4.5 – 5% and the $800,000.00 projection those numbers are still based on the market at the time of the issuance of bonds. As the City Manager indicated, if that number is higher than that's great, but it is still depending on the market when the bonds are issued.

Commissioner Johnson directed the City Manager to keep the City Attorney involved through the bond process for legal sufficiency.

She further expressed her concerns relating to the scoring from the staff review committee which is only a 5% difference between the two companies who submitted proposals. Based on experience, she said she is concerned as to why one company came favorable over the other. She requested that the City Attorney stay engaged with this matter along with staff and the City Manager before bringing back recommendations to the Commission.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

16-11: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO DIRECT THE CITY OF OPA-LOCKA POLICE DEPARTMENT TO ISSUE IDENTIFICATION CARDS TO RESIDENTS AT A COST OF $2.00 AND A COST OF $10.00 FOR NON-RESIDENTS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

Vice Mayor Taylor asked for clarification because she didn't understand the significance of having identification cards for the residents when they have their driver's license and/or FL identification. In addition, the Opa-locka Police Department would have to staff a person to perform this function. She asked, is fingerprinting included with this which would increase the cost? She also asked what would be the purpose of a non-resident having an Opa-locka ID as oppose to an already existing Driver's License.

Commissioner Holmes explained that he, the Chief and Deputy Chief met on this particular item to assist in identifying the residents and non-residents of Opa-locka.

Chief Cason said that the issuance of Opa-locka identification would be an effective tool for the police department because it would identify the residents who belong in the area and help people to go about their way. It would also be helpful with the Thanksgiving and Christmas giveaways because the residents would have their identification.

Vice Mayor Taylor expressed her concerns relating to needing an additional staff perform to perform this function; the proposed fee for the ID's, whether fingerprinting was involved and the fact that individuals should already have a Florida driver's license or ID with their address on it. The fact that a person doesn't have ID period is against the law.

Chief Cason stated that they are venturing with this idea and the thought is to do the ID's two times per week or have specific times. Also, this doesn't have to be only for adults but for children too. This would also assist with missing persons because the police department would have everything on file.

As it relates to staffing, she said that the police department is in the process of getting the CAD system which has program capabilities to store information.

Vice Mayor Taylor asked, is identification a problem in the city?

Chief Cason replied, yes. She said that a lot of people can't afford the $25.00 fee charged at the Florida Division of Motor Vehicles for identification.

Vice Mayor Taylor asked, when would this go into effect?

Chief Cason stated that the IT Department is looking into the cost for the ID maker and it would be brought back as soon as all the information is put together.

Of concern to Vice Mayor Taylor was whether the cost was arbitrarily since due diligence was not done to say this is what it cost to make the ID's, this is what it cost to staff it, this is how much this project will cost and yield the city over a certain amount of time. When coming before the Commission, everything should already be prepared because the cost in the resolution may not cover the cost of making the ID's; therefore, the police department is not ready for this.

Chief Cason advised that the Opa-locka Police Department is currently working on this process.

Vice Mayor Taylor said she didn't see this as necessary but she won't fight it; however, she does need more information.

Mayor Kelley agreed with the points made by the chief and to the sponsor he said it was a great resolution. Although he is not sure that the resolution should include the cost because the Commission can accomplish what is needed to get the ball rolling.

He suggested that the sponsor allow a friendly amendment to the resolution to allow the chief to come back and provide the specific numbers. What he'd seen in other cities is that the issuance of ID's is on specific days with current staff person; however, what he doesn't want to hear is that there's an officer that should be on the streets in the police department issuing ID's.

Commissioner Holmes agreed with Mayor Kelley in terms of the amendment; however, there will be some individuals who cannot afford the fee for the ID but the city should still issue it anyway.

Attorney Geller provided the language for the amendment to the resolution as follows:

Resolution Title: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO DIRECT THE CITY OF OPA-LOCKA POLICE DEPARTMENT TO DEVELOP A PROGRAM TO ISSUE IDENTIFICATION CARDS TO RESIDENTS AND NON-RESIDENTS.

Section 2: To authorize the City Manager to direct the City of Opa-locka Police Department to develop a program to issue identification cards to residents and non-residents.

Mayor Kelley added that part of that development process is what the sponsor mentioned about a caveat for those who cannot afford to pay.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to amend the resolution as reflected above.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

The motion on the original resolution passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

16-12: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO EXPEND FUNDS AND SEEK COMPETITIVE BIDS FOR THE REHABILITATION OF MAGNOLIA

NORTH PARK "TOT LOT" IN AN AMOUNT NOT TO EXCEED FIFTY THOUSAND DOLLARS ($50,000.00), PAYABLE FROM ACCOUNT NUMBER 44-541813; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Of concern to Vice Mayor Taylor was that the project amount was being provided for this bid but she recalled the Ali-baba Roadway Project where the city had to go out for bid again due to the bid being over the amount of money available. During that time she requested that the City Manager provide the company with the budget for the project and the City Manager's response was that it would invalidate the bid process.

Attorney Geller stated that the city is not prohibited from providing the project budget in a competitive bid situation. By doing so, it would eliminate those companies who cannot perform the work within that budgeted amount. When the budget is not provided, the bidder can always request it from the city.

With regards to the Ali-baba Avenue project, he said that he didn't know what would have prevented anyone from requesting the budget because it is a public document. However, it is possible that there were some funding source in particular with federal funds that may have had stipulations.

Vice Mayor Taylor stated that her concern is that the city is providing the amount for this bid but didn't provide it for the Ali-baba project and what's good for one should be good for all. She asked, is the $50,000.00 a grant or is that what the city is bidding for? Is this resolution saying that the city is spending money and then seeking $50,000.00 more?

Attorney Geller clarified that the fact that the city can provide the project budget is very different than saying that they should or have to; however, the Commission can certainly instruct that it not be provided.

Manager Patterson explained that there are two projects involved; one is to redo the tot lot and the other is the fencing.

Attorney Geller stated that he believed the reference of expenditure of funds is for the City Manager to seek competitive bids and the $50,000.00 is the proposed project cost. As he understood it the $50,000.00 to be expended in rehabilitating the Tot Lot would come from that account number. This project is going out for bid to get the lowest possible price from the best possible contractor.

Commissioner Johnson asked, what is the minimum amount for the competitive bid process?

Attorney Geller advised that it's either $5,000.00 or $7,500.00.

When it relates to projects dealing with the parks, Commissioner Johnson suggested that the Commission be involved in the process as oppose to staff providing a recommendation. Although the projects have to go through the competitive bid process she requested that the bids come back to the Commission and not staff.

Attorney Geller advised Commissioner Johnson that her request could be done as an amendment for this particular resolution. The amendment would include the wording to the resolution title and section 2 as follows: to seek competitive bids not to exceed $50,000.00 to be selected and awarded by the City Commission.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the resolution.

Mayor Kelley explained that the amount in the resolution is city funds, therefore, there are no stipulations unlike other bids. These funds are to redevelop the Magnolia Tot Lot park upon receiving the other piece of land from the county to extend it. Although he doesn't have a problem with the Commission awarding the bid, he still wants staff recommendation because he may not have the time to read every detail of every proposal that may come in.

Commissioner Johnson welcomed input from staff but sometimes there are projects on hold and she doesn't want to see any project on hold. Although she didn't mind staff input, this is such a small project that the Commission can be engaged and make a decision serving as a selection committee.

There being no further discussion, the motion on the amendment failed by a 2-2 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	No
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Mayor Kelley	No

There being no further discussion, the motion on the resolution passed by a 3-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

With regards to the case update report provided by the City Attorney, Commissioner Johnson asked, how would the report impact agenda item 16-1 on the consent agenda?

Attorney Geller advised that a copy of the lawsuit filed by Mr. Greason on behalf of Linda Bracy was attached to the report with regards to a final order issued by the Personnel Board. Mr. Greason is seeking declaratory judgment which allows the court to declare the meaning of the charter provisions in dispute.

Of concern to Commissioner Johnson was that the resolution is under the Consent Agenda to be voted on by the Commission with no discussion.

Attorney Geller stated that moving forth with the resolution would undercut the lawsuit and cause a problem. The lawsuit has been filed with the courts and certainly the city would like to get a definitive ruling that would settle the issue which would apply to the current cases ongoing regarding the Personnel Board.

He asked that the Commission consider deferring that item until the city receives the ruling from the court. He said he was unclear as to where this would leave the city in the litigation if item one goes ahead. He requested item 16-1 is not passed until the city can get a resolution of the issue from the judge.

Vice Mayor Taylor asked Attorney Geller if he discussed this issue with the sponsor of the resolution.

Attorney Geller said he had spoken to Commissioner Holmes in the past and this was the way they came up for him to accomplish what he wanted accomplish, but then the lawsuit was filed on September 10, 2010.

Vice Mayor Taylor said she would like to follow the recommendation of the attorney to hold off on the resolution until the court has rendered a ruling in the lawsuit.

Commissioner Holmes informed the Commission that this is the item he attempted to amend to the agenda prior to the lawsuit being filed and he tried to explain to the City Attorney that he wasn't trying to direct the City Manager to pay these people any money, but to have the City Manager follow the decision of the Personnel Board. This item was not pulled from the Consent Agenda to be discussed and now there is discussion about deferring the resolution because a lawsuit was filed. The only thing that lawsuit is going to do is that the city will be responsible for attorney fees and still have to pay those individuals.

He requested that the resolution continue on the agenda as is because the Commission had the opportunity to pull it or defer it at the beginning of the agenda but that didn't happen. He stated to the City Attorney that he didn't like what happened at the last commission meeting with this particular resolution.

13. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, IN RECOGNITION OF HISPANIC HERITAGE MONTH, BEGINNING SEPTEMBER 15, 2010 THROUGH OCTOBER 15, 2010; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO SELECT _____ AS THE CITY'S OFFICIAL AUDITING FIRM FOR THE UPCOMING FISCAL YEAR 2010-2011; PROVIDING FOR RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution selecting Harvey, Covington & Thomas LLC as the city's official auditing firm for the fiscal year 2010-2011.

Commissioner Johnson stated for the record that Harvey, Covington & Thomas LLC has been selected by the Portrait of Empowerment governing board to conduct their audit.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH CITRIN FINANCIAL AND INSURANCE, INC. TO CONTINUE AS THE CITY'S AGENT OF RECORD; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR REPEAL OF ALL PRIOR ORDINANCES IN CONFLICT; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION/PUBLIC HEARING:

16. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE CITY MANAGER TO FOLLOW AND IMPLEMENT ANY AND ALL "FINAL ORDERS" OF THE PERSONNEL BOARD; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

Note: This portion of the minutes is transcribed in verbatim.

Mayor Kelley: Mr. Attorney this is the item I need clarification because this is the item that Commissioner Johnson I guess you had a discussion on. According to one of my colleagues you cannot go back and deal with it. I'm trying to read your correspondence

here and I'm hearing the dialogue when I came back in the room about deferring it. Since we had already set the agenda, what would it take to deal with this item if that is the pleasure of the Commission.

Attorney Geller: You would have to have a motion to further amend the agenda.

Mayor Kelley: Alright, a motion to further amend the agenda?

Attorney Geller: If somebody wanted to pull this item, you would have to move to further amend the agenda by pulling the item for discussion.

Mayor Kelley: And it requires just three votes or does it require all four? That's my question because to amend the agenda to add on you need four. I'm just trying to be clear.

Attorney Geller: I believe that it requires the same vote that it would at the beginning of the agenda to pull anything. To pull the item to amend the agenda is not, to his knowledge, require any extraordinary vote. You can amend the agenda, your custom is to allow anybody who wants to to pull it but in this case it would have to pass. It would need the majority vote to further amend the agenda by pulling that item.

Mayor Kelley: Alright, just wanted to be clear. Alright you heard the attorney. If the commission wants to further amend, you need a motion.

Vice Mayor Taylor: Move it.

Mayor Kelley: Moved by Vice Mayor Taylor to further amend the agenda to discuss item one.

Commissioner Johnson: Seconded for discussion.

Mayor Kelley: Seconded by Commissioner Johnson for discussion.

Commissioner Holmes: Mr. Mayor, it cannot be done this way. It cannot be done this way. You know, you all are going to have to learn to use your common sense. You had the opportunity to defer this and to move it at the beginning of this agenda. We're going to set the agenda then you're going to go over the whole agenda almost and you look back at it and you see, hey, I should've pull this and you didn't pull…you all do what you want to do but Commissioner Holmes will not sit here and fall for that. And Mr. Attorney, you are rubbing on the wrong side of me and I don't think you are going to like that.

Attorney Geller: I'm sure of that sir.

Commissioner Holmes: I know you're not because this is your second time around here and you know I was here when you were here the first time around so keep that in mind.

Go ahead Mr. Mayor I'm through with what I have to say and that's no threat, those are facts.

Mayor Kelley: Still under discussion to further amend. This is to further amend to bring back up to discuss?

Attorney Geller: Yes sir.

Mayor Kelley: This is to further amend to discuss. Roll Call.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to further amend the agenda to bring item 16-1 up for discussion.

The motion passed by a 3-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

Mayor Kelley: Now it's back on to discuss. Now we're going to go and pull this item.

Attorney Geller: Well that's what you did, you voted to discuss it.

Mayor Kelley: Right, we're voting to discuss it. We have to further the agenda to put it on. Now we have a motion and seconded to discuss it.

Attorney Geller: Yes sir.

Mayor Kelley: So I need a motion…

Commissioner Johnson: I thought it needed four…

Vice Mayor Taylor: Wait a minute, he said it didn't take four to put it on.

Mayor Kelley: I asked that question he said it didn't…that's what I was asking the attorney.

Attorney Geller: No, it's already on the agenda so you voted to…basically the vote was to amend the agenda to pull the item to discuss it. That's what you voted.

Vice Mayor Taylor: So the same rules for the add-on are the same rules for this?

Attorney Geller: No ma'am, this is an item already on the agenda.

Vice Mayor Taylor: And what we want to do is pull it…

Attorney Geller: ..for discussion, that's what you moved.

Vice Mayor Taylor: So we're pulling this for discussion.

Mayor Kelley: Right, so now it becomes an individual resolution. So you need a motion and seconded then we can discuss. I'm trying to follow your legal opinion.

Attorney Geller: You voted to amend the agenda to discuss the item.

Vice Mayor Taylor: We did that already.

Attorney Geller: So now it's up for discussion.

Mayor Kelley: It's up for discussion or up to bring up for…

Attorney Geller: I think that's what you voted. You voted to amend it for purposes of discussion.

Mayor Kelley: Alright, so now we're going to discuss this item.

Attorney Geller: Yes sir, it's now in front of you as if it had been pulled.

Mayor Kelley: We just did a motion and seconded to further the agenda, using your words. Now my question is, do we need another motion and seconded to discuss.

Attorney Geller: No sir, you voted to amend the agenda to discuss the item.

Mayor Kelley: So we need to discuss now. But after we discuss do we need another motion.

Attorney Geller: You have to decide…well you treat it as if it had been pulled. That's what you voted in essence.

Mayor Kelley: So now it's under discussion of this item.

Attorney Geller: Yes sir.

Mayor Kelley: Alright following the attorney's legal understanding of this, we're under discussion of item number one on the agenda. Discussion…to my colleagues, 16-1 is now up for discussion.

Commissioner Johnson: We need four in order to amend. Once the consent agenda comes on and I do respect legal sufficiency and I do respect your opinion Mr. Geller but as a certified parliamentarian, I big to differ on this. Once it is on the agenda, you need the

total four of us to come in agreement to amend the agenda. It's the difference between if we didn't in the beginning versus doing it after it went on.

Vice Mayor Taylor: We only have one attorney in here. Now that attorney is going to be the one to defend what we do and say in this meeting. So now everybody can't be an attorney even though we might not agree with what he said. That's why I asked the clerk to put this down as verbatim because this minute is probably going to court. But we have to go with the attorney. Now we might not agree with based on our experience or based on what we know but that's why he's sitting over there. So therefore we must go along with what he said. Now if you don't like it then don't vote but don't vote on him. He's the one that's going to defend…he's the one that represents the city. Now the reason that I did not pull this item is because I did not have…I did have something to say about it but when I got information and that happens all the time, when you get information, it happens in court when information comes up…well Mr. your honor we have new information on this case, it changes the flavor. New information has come on this item that now changes the flavor of it. Now I'm going to follow Mr. Geller's lead; he's the city's attorney. He's the one that's going to have to go to court with what he said, what he gave advice to the Commission and defend what he did in today's session.

Commissioner Holmes: I would like to yield to Mr. Riley of the Personnel Board to give a comment.

Mr. Riley: Mr. Mayor, I've served where you serve. Once you set the agenda, the agenda is set. To amend that agenda, you have to amend the agenda and to amend the agenda in this city takes four votes. Simple, the agenda is set. Okay, if you didn't have an agenda you set, once you did your add on and everything else, now you set the agenda. The agenda is set. Now if you want to amend that agenda, it takes four votes. It's just that simple. You can take legal advice but I'll tell you something else the courts will tell you, you also have to have common sense.

Commissioner Holmes: Then you have to pay money. I'm not going to argue anymore about what's right for this city because I see it's a hard thing up here trying to do best by the employees and the citizens of this city and one person is fighting on his own and trying to get a lot of things done.

Commissioner Johnson: Although it's said in a general comment and when I make comments it's not as if I feel as though I'm an attorney but I have two years of law and I have a lot of certifications that really gives me a little bit of leverage to know what I'm talking about and when I hear those types of comments I think its very disrespectful. And I would like to ask my colleagues to please discontinue it because I don't appreciate it. I know who I am and I don't need to be an attorney to make an opinion of what I think is right or wrong. And I would greatly…I don't do that to anyone and if I have then I publicly apologize but I really don't appreciate that. All I was saying is from a parliamentarian point of view, I feel like I can vote the way I'm going to vote and I got new information but I'm just saying at this time and this junction it takes four of us. And

Mr. Geller may go back and find out through parliamentarian Robert Rules something different. But I would appreciate the same respect given, getting. Thank you.

Vice Mayor Taylor: To you Commissioner Johnson, the comment that I made was not directed at you so since you took issue on it and was offended by it then I do apologize, but it was not directed at you.

Mayor Kelley: To my colleagues, it's a long night, it's been a long night and we all want to try to do the right thing. Mr. Attorney, I'm trying to remember myself on the add on and I'm really not comfortable either way right now. I'm really not comfortable. You are the legal attorney and one thing I have learned from dealing with other institutions that govern issues you have an attorney and your saying in your legal opinion that you can do this in terms of furthering it to deal with it as oppose to the four votes. That's the point I'm making.

Attorney Geller: Yes sir and let me just say Mayor, I'm not perfect either and I may be wrong but I've only got one opinion, I don't have two and the one I have is that the Commission, unless there's something that prohibits it, the Commission may act by majority vote. And in most cases that is the way the Commission acts. I understand that there is a rule in this city that to add something to an agenda that is not on the agenda requires four votes. I just don't consider that rule to apply here because this item is already on the agenda and I think that to prevent any commissioner ever from being able to see something that they view as an oversight, something they missed whatever, that they want to call back to the attention of their colleagues simply for the purposes of discussion and to say that they cannot do that if a majority of the colleagues agree with them when the item is already been agenda, that's the opinion I have. Again, I don't claim infallible that does not come with a bar license or a degree from law school and yes, I could be wrong but I can only have one opinion on a matter like this and that's the opinion that I have. If I thought it was improper, I wouldn't do it and I'll just also take this opportunity to say personally to Commissioner Holmes who I understand is upset with me that if I did not think this was a matter of pressing concern for the city that goes to the issue of the ability of the City Manager to manage, I understand that there's another school of thought, Mr. Greason has filed it, has a different school of thought, Mr. Riley who I have enormous respect for and who certainly knows his way around this charter has a different school of thought and that's why I thought that the best solution here is to allow a judge to make a decision. I know Mr. Riley has saw the intervention of the courts on similar matters in the past and I just feel that allowing a judge to tell us this is what this apparent ambiguity in our charter means where one section seems to say one thing and a different section seems to say something else. If the court disagrees with our position, so be it then we'll know but we'll have a clear answer and the issue would be resolved once and for all. But commissioner I do want to say to you if you view this as my trying to play games with you then I apologize that your viewing it that way but it's the last thing that I have (inaudible) here, I'm just trying to do my job.

Commissioner Holmes: Mr. Attorney, don't put thoughts and ideas in my mind because you can't read my mind. I'm not upset with you. When you see Commissioner Holmes

and I'm not going to get upset about bringing the resolution to show you the door. Commissioner Holmes don't let it get that far with him in his heart and that's the reason my heart stays so good. My heart doctor came to me before I had the surgery and said go on with the surgery, his heart is good. My heart is good so don't try to put thoughts in my head and my mind because I'm not going to sit in here for it. Commissioner Holmes doesn't have any problem of telling you what's on his mind. Most people tell me I say what a lot of my colleagues don't want to say. I go on and tell you anyway so that's what I am; I tell you the truth and I laid it out there.

Mayor Kelley: Since we've discussed this item, if it's the pleasure of the majority of the Commission to vote on this item separately; now we would need another motion and seconded, Mr. Attorney? I'm trying to follow your…

Attorney Geller: You either have a motion to approve the item or you have a motion to defer the item. Whatever motion is good with the Commission.

Vice Mayor Taylor: If we approve this item and the courts disagree then what happens? We have to now then come back and rescind this resolution.

Attorney Geller: I don't really know where that would lead us Vice Mayor. If this passes, I don't know if that means that the other side then gets to move for a summary judgment with the court and say that the Commission of the city has agreed with our position judge, you must enter a ruling in our favor or if he feels he's gotten his relief and ends up dismissing his lawsuit and the question…I don't know the answer to it.

Vice Mayor Taylor: I'm not taking that chance.

Commissioner Johnson: Then Mr. Attorney, if we have a resolution and it passes, all we have to do the next meeting is come back and rescind it. Think about what I'm saying now. This is not a public hearing, this is a resolution. My colleague is bringing a resolution which he tried a couple of times just telling us to do it but now this is a resolution. So all I got to do, if the courts come back whenever that happens and it's on the record, could we not rescind it.

Attorney Geller: We can always rescind the resolution, however, there are two things that bite here; first of all I don't know what effect this has on the court case whether this may be something that the opposing counsel can use to obtain a favorable court decision without the court considering the issue. If we've reached a position in essence it even puts me in doubt as to my ability to continue to defend our position; it's not for me to go contrary to a vote of the City Commission. Plus in the meantime, it may mean the City Manager is immediately required to comply before we even get a court decision.

Commissioner Johnson: This is a tough situation to be in. Thank you!

Attorney Geller: For what it's worth, I do think that the court case will move fairly quickly.

Mayor Kelley: It has been a long night and here's an issue that has come before us and the reality is we probably would not be in the position would it have been pulled but as it was stated by one of my colleagues getting information that we just got really plays into it. And it goes back to the point of getting information prior to the meetings in a timely manner to be able to really take an articulated position. We need to make a motion to either yea or as the attorney said to defer it or whatever but we need to make a decision because we pulled it and put it back before us so the Commission has to take some action; notwithstanding all the ramifications of whether we have right or should be doing it; it's before us based on the action we've taken thus far and the advice of counsel. So the pleasure of the Commission is to move it one way or the other, up, down or defer but we have to take some kind of action because it's before us as an item. We have to make a motion to either "yes" or the attorney said to defer it because it's in litigation. So that's an option but we have to take some kind of action as the Commission because we put it right before us on the agenda.

Vice Mayor Taylor: In view of the fact that the information that have come to us from the attorney and the legal opinion from the attorney then I move that we defer this item until we've had an opinion from the courts.

NOTE: This concludes the verbatim portion of these minutes.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to defer agenda item 16-1 until a definitive answer is received from the courts.

There being no further discussion, the motion passed by a 3-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO SUBMIT AN APPLICATION TO THE STATE OF FLORIDA DIVISION OF EMERGENCY MANAGEMENT FOR 2011 PRE-DISASTER MITIGATION PROGRAM, REQUESTING FUNDS IN THE AMOUNT OF THREE MILLION DOLLARS ($3,000,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, CALLING FOR A GENERAL ELECTION TO BE HELD IN AND FOR THE CITY OF OPA-LOCKA, FLORIDA ON NOVEMBER 2, 2010, PROVIDING FOR AUTHORIZATION FOR THE CITY CLERK TO PUBLISH THE APPROPRIATE NOTICE OF GENERAL AND SPECIAL ELECTION IN A

NEWSPAPER OF GENERAL CIRCULATION IN THE CITY AT LEAST FIFTEEN (15) DAYS PRIOR TO THE ELECTION AS SET FORTH IN SECTION 8.5-3 OF THE CODE OF ORDINANCES OF THE CITY OF OPA-LOCKA, FLORIDA; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.C.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DESIGNATING CLERKS AND INSPECTORS FOR THE GENERAL AND SPECIAL ELECTIONS TO BE HELD IN AND FOR THE CITY OF OPA-LOCKA, FLORIDA ON NOVEMBER 2, 2010 AS REQUIRED BY CHAPTER 8.5 SECTION 8.5-5 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.C.*

The above resolutions were read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions (16-5, 16-9 and 16-10).

The motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

Note: This portion of the minutes is transcribed in verbatim form.

Clerk Irby: With the other two resolutions pertaining to the election, if you notice I did not have one in there for the Canvassing Board because we really don't need a Canvassing Board unless you all really want us to have one. But the Elections Department does that.

Mayor Kelley: Right, no we don't need a Canvassing Board.

Note: This concludes the verbatim portion of these minutes.

A. CITY MANAGER'S REPORT:

Manager Patterson addressed those concerns brought up during the Citizens' Forum relating to the pump stations, public safety in the Magnolia North area, maintenance of NW 22nd Avenue and NW 27th Avenue, upkeep of the city's alleyways, and the property owners on the 22nd Avenue Corridor.

In addition to that he reported on the recent discussions with Dennis Stackhouse for the purchase of Town Center. Not knowing anything about the foreclosure as presented on that day, the city had engaged an appraisal for the current market value of the property.

He further stated that he would be looking into the other concerns raised during Citizens' Forum relating to the vacant property and the maintenance and planting of new trees.

Although the City Manager may have just received the information relating to the foreclosure of Town Center, Mayor Kelley said he could not envision the City Manager or staff not tracking this matter when there have been comments from the dais as well as citizens about the building being in foreclosure. The reason he proposed legislation of looking into purchasing and/or getting out was because of the conversations, rumors and allegations relating to the owner losing the property. He found it hard to believe that not one staff person followed this issue and did some research to see what had been filed against this property prior to now when this document goes back to the beginning of this year. It is clear now that the City Manager is not dealing with Mr. Stackhouse but with somebody else; however, he cannot believe the city would have not known about it that it was being done prior to now.

He continued by saying, if the City Manager had been negotiating with Mr. Stackhouse on the building, the second plan of moving out of that property should also be somewhere in a plan or proposal for the Commission. Although he didn't hear the City Manager mention that part of it but that was the other piece of the resolution because the resolution did not just address the purchase of the building but also to look at getting out of the building. Now the mindset is that the city is in a building that somebody else owns and they could be put out, not that he believes that will occur but where is the city going to go. Even though it may not be that simple and the city may be able to negotiate with the new owners but the reality of it is that the City Manager didn't have this information to know what was happening considering that it goes back some months.

He further stated that the City Manager and his staff had been with the city long enough so this falls under the manager's watch.

Commissioner Holmes asked, who is the monthly rent payment for city office space at Town Center being paid to?

Manager Patterson replied, to Town Center.

Commissioner Holmes asked for an update on the new vehicles for the police department.

Manager Patterson said that the city is waiting for the 2011 models to become available.

Vice Mayor Taylor asked, if the property has changed hands since April 1, 2010, why is the city still making payments to Town Center One?

Manager Patterson stated that the city receives invoices every month from Town Center.

Attorney Geller explained that there is an assignment of judgment from April 1, 2010 by which Capmark, the mortgage company not the owner, assigned their interest to this entity named JWV Florida Properties. There is something unusual happening because apparently although the sale is now set until the sale occurs the owner is the owner. Even though there's a final judgment, the owner of the property as of today is Town Center. What is surprising is that in most cases like this, a lender would go into court and ask the judge to appoint a receiver to receive the rent while the property is in foreclosure. Then the receiver would be charged with the duty of collecting rent and notifying the tenant which is normally when the tenant would find out about the foreclosure.

Vice Mayor Taylor thanked the police department for doing the monitoring of the 22nd Avenue corridor. She said she was weary about all of the plans in place but not a lot of action from the plans. The 22nd Avenue corridor was to be done in two phases: one was from NW 135th Street to SR9 and from SR9 to NW 151st Street. The first part was to look at the clientele coming in reeking havoc with the drug and illegal activities. Although the police officers are present her only concern is that she has not seen the officers out of the car. The city must make a statement that individuals can not come from Liberty City and set up shop. She requested to see a foot patrol detail in that area showing their presence and walking through in order to see the activity which cannot be seen from their vehicle.

She suggested that the City Manager stop with the planning and start taking action. Previously she had asked about having a picture of the façade and now the City Manager has indicated that FIU is working on a plan but she didn't see when that plan would be completed. If the city looks in the files they should have at least 50 drawings of NW 22nd Avenue; therefore, she would like to see more action than plans.

She further spoke about the two phases to address the criminal element and deal with the apartments in the 22nd Avenue area. In reviewing the report from the City Manager, it includes Community Development and Code Enforcement but she doesn't see the health department because the health department needs to come in for some action to take place. She requested that the Health Department get involved. In addition, she asked for a date when FIU would be doing their due diligence? The city should have two police officers to a vehicle and start utilizing the reserve officers as well.

With regards to the revenue audit trail reflected in the packet provided to the Commission, Commissioner Johnson asked, are those monies coming in?

Manager Patterson replied, yes.

In the documentation provided, Commissioner Johnson said that the city is receiving monies for mobile homes licenses. She asked, where are the mobile homes in the city?

Not knowing where the mobile homes were in the city, Manager Patterson agreed to provide Commissioner Johnson with that information at a later date.

Going further down the documentation, Commissioner Johnson said it reflects returned checks. She asked, are those checks the city wrote or checks people have issued to the city?

Without having the information in front of him, Manager Patterson assumed that those were bad checks people issued to the city.

Commissioner Johnson asked, what is the city doing to recover those monies?

Manager Patterson said that the city has an employee in the Finance Department working on bad debts.

Being the sponsor of legislation over two years ago, Commissioner Johnson said she has never seen a report. She requested that the City Manager provide a monthly report to the Commission on the recovery of outstanding debts owed to the city.

She continued by expressing her concerns relating to the report of other miscellaneous revenues. She asked to be provided with detailed information as to where that money is coming from.

With regards to the tour in May 2010, she said she had asked for a report but as of today, she has yet to receive it. The City Manager's staff should be taking notes at city meetings and all concerns should be followed up immediately. She was of the opinion that if staff lived in the city it would be better.

She further directed the City Manager to provide the Commission with a report on the impact of those police officers on leave who are continuing to get paid.

With regards to the Obama money, Mayor Kelley asked, what has the city received so far?

Charmaine Parchment, grant writer for the city came forward and explained that the money from the grant is not received as a check but as the city spends it, a request is made for reimbursement for those monies. The city has filled two positions with the police department and so far they have been making quarterly reimbursement requests. In addition to the police officers, there is money for equipment for the police department to include police radios, the CAD system and computers; infrastructure for the roads; forestry; summer employment and the training of those individuals from the South Florida Workforce. Unable to recall all the grants as a part of stimulus money, she said she would provide a detailed report.

Mayor Kelley directed the City Manager to provide the Commission with the breakdown of all grants as a part of the stimulus dollars received from the Federal Government. Also, he requested that the Commission is provided with the percentages for the Enterprise Fund.

He continued by saying to the City Manager that those items before the Commission, the information they request and the things they want to see done needs to move faster. In terms of NW 22nd Avenue, the Commission wants to see quicker action in addressing the concerns. Although one of his colleagues mentioned the health department, but he always caution and hopes the city is prepared on the other end to have a place for those residents to go.

With regards to the schedule for litter pickup being increased, he said he didn't hear the City Manager mention anything about the maintenance of areas around the city that were also referenced and those must be included in that beautification effort.

He further stated that while the city wants to make sure the owners comply that they don't lose sight that those citizens still must have a place to go. In his research, he said that those apartments are not HUD because those tenants pay rent. Even though he had seen the officers out of the vehicle walking, he suggested additional police presence in that area.

Mayor Kelley suggested that the City Manager pick up the pace in addressing those concerns relating to NW 22nd Avenue as expeditiously as possible with the implementation of the plan to include timelines for accountability purposes.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the reports have been provided in the packet and the bills are being paid.

For the record, he stated that there is $565,000.00 in the city's reserve.

17. OFFICIAL BOARD REPORTS:

18. CITY ATTORNEY'S REPORT:

Attorney Geller reported to the Commission that Cemusa, owner of the bus shelters, had provided notice to terminate the current contract because they will be pulling out of the Miami-Dade County area. Cemusa is prepared to transfer ownership of the five bus shelters in Opa-locka to the city at no cost. However, the city at some point would have to find another operator for the maintenance and upkeep.

Commissioner Johnson directed the City Attorney to send Ms. Lawson the educational compact in electronic format. In addition to that, it was brought to her attention that there are former employees blocking opportunities for people coming into the city and if so, then the City Manager must take corrective action. She suggested that the City Attorney get with the City Manager to make sure this type of activity ceases if it is taking place.

19. CITY CLERK'S REPORT:

Clerk Irby announced that the last day to register to vote is October 4, 2010.

Commissioner Johnson requested that the City Clerk include the comments relating to the Canvassing Board in verbatim form.

20. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported her attendance at the North Dade Chamber event and the grandparent's celebration. In addition, she is working with the Youth Leadership Council, the University of Miami Health & Wellness and trying to take another step with the Opa Steppers.

She continued by reporting her invitation to meet with the Vice President of the United States.

Vice Mayor Taylor reported her attendance at the Senior's Adopt a Child sponsored by the Parks & Recreation Department.

She continued by expression her frustration relating to the vandalism of her campaign signs in the race for mayor in which someone had been writing "thief" on them. She said that the record will reflect that she has not stolen anything from the City of Opa-locka or from anyone else. If whomever is referring to her case which was over five years old and involved her personal income tax not being filed in a timely fashion but because at the time she was an elected official, it became a high profile case.

She asked that the mayor join her in publicly denouncing that kind of action, which should stop immediately.

She further announced that on October 9, 2010 she would be sponsoring Spanish Celebration Day in observance of Hispanic Heritage Month from 1:00 p.m. – 6:00 p.m. and that the flyers would be forthcoming.

Commissioner Holmes thanked everyone who sent him well wishes during his time of illness.

Commissioner Johnson announced that Blue Foundation would be having its unveiling of War on Poverty on October 15, 2010 at Town Center (2nd Floor).

Mayor Kelley reported his attendance at the grandparents event sponsored by Parks & Recreation at Ingram Park and the South Florida Regional Planning Council Meeting. He mentioned hosting a tour with the Homeless Trust which was initially not designed for a tour but as it turned out Mr. Raymond brought a lot of individuals with him and it turned into more of a tour than it was suppose to be just a few people going around in a vehicle. The Homeless Trust has funding for the homeless and he is always trying to find funding that can help issues in the city.

He continued by reporting his attendance at the Crime Watch Meeting on September 21, 2010 on the east; the Magnolia North Crime Watch Meeting on September 20, 2010; Constitution Day on September 17, 2010 at Opa-locka Life Skills Center; Leading Lady of Elegance Initiative at Segal Park and Walk-a-Thon with the Seventh Day Adventist Church.

He further stated that he continues being in contact with County Commissioner Barbara Jordan's Office to make sure the city moves forward on the Magnolia North demolition which is tentatively scheduled for October 4, 2010 @ 10:00 a.m.

Although he tends not to speak about politics and races because that's a separate issue from what the Commission is called to do as policymakers, Mayor Kelley said that it is very clear who is running for mayor and it is very clear from his perspective that he would run on his record of what he has done. Therefore, he doesn't have a need or any people involved in his campaign to slander anyone in any race. He said he had nothing to do with any writing and suggested that anyone doing so should stop.

He went on to say that one of the things the Commission must make sure and it tends to happen in many communities, they cannot let folks divide them as a city regardless of who's running or winning in office because at the end of the day all of them are still Opa-locka citizens and residents.

He announced the Business Assistance Forum on September 23, 2010 @ 11:00 p.m. at Town Center (2nd Floor).

21. OFFICIAL BOARD APPOINTMENTS:

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to re-appoint Maxine Major to the Housing Authority and Eugene Stanley to the Community Relation, Recreation & Activities Advisory Board.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Commissioner Holmes	Yes
Mayor Kelley	Yes

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 11:56 p.m.

MAYOR

ATTEST:

CITY CLERK